

Smt. Ramya. S. R vs Sri. Vijay. H. R on 11 December, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:44910
CP No. 364 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF DECEMBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 364 OF 2023

BETWEEN:

SMT. RAMYA S. R.,
W/O VIJAY. H.R.,
AGED ABOUT 34 YEARS,
R/AT EKADANTA THERUKATTE,
VAIKUNTAPURA, THEKKURU POST,
SRINGERI TALUK,
CHIKKAMAGALURU DISTRICT - 575 139.

...PETITIONER

(BY SRI. C.R.RAJA GOPAL., ADVOCATE)

AND:

SRI. VIJAY H.R. S/O RAMESH H.R.,
AGED ABOUT 39 YEARS,
RESIDING AT NO.987, 7TH MAIN,
SRI SHIVARATHRESHWARA NAGAR,
BANNIMANTAP, MYSORE - 570 015.

...RESPONDENT

Digitally signed
by SUCHITRA
MJ
Location: HIGH
COURT OF
KARNATAKA

(BY SRI. SHIVAYOGESHA SHIVAYOGIMATH., ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SEC.24 OF CPC,
PRAYING TO PASS AN ORDER TRANSFERRING THE CASE IN
M.C.NO.665/2023 WHICH IS NOW PENDING IN THE COURT OF THE
III ADDL. PRINCIPAL FAMILY COURT AT MYSORE TO THE FILE OF
THE PRINCIPAL JUDGE, FAMILY COURT, SRINGERI, FOR BEING
DISPOSED OF IN ACCORDANCE WITH LAW, IN THE INTEREST OF

JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The petitioner, wife of the respondent is before this Court under Section 24 of the Code of Civil Procedure, 1908 (for short 'CPC'), with a prayer to transfer M.C.No.665/2023 pending on the file of III Additional Principal Family Court, Mysuru to the Principal Judge, Family Court at Sringeri for disposal.

2. Heard Sri. C.R.Rajagopal, learned counsel for the petitioner and Sri. Shivayogesh Shivayogimath, learned counsel for the respondent. Perused the petition papers.

3. Learned counsel for the petitioner would submit that marriage of the petitioner and respondent was solemnized on 08.05.2016 and from their marriage, they have one child. It is submitted that the petitioner is not working and she has no income of her own. The petitioner and her child are depending on her parents for their livelihood. The petitioner has initiated proceedings in Crl.Misc.No.22/2023 on the file of the Civil Judge and JMFC NC: 2023:KHC:44910 at Sringeri under Section 125 of Cr.P.C., seeking maintenance. Further, it is submitted that the respondent-husband has initiated proceedings in M.C.No.665/2023 on the file of the Family Court Judge, Mysuru under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955, seeking dissolution of marriage. Learned counsel for the petitioner would submit that it would be difficult for the petitioner to travel from Sringeri to Mysuru along with her child as she has no income of her. Thus, he prays for transfer of proceedings from Mysuru to Sringeri.

4. Per contra, learned counsel for the respondent- husband has filed objection contending that earlier there was compromise between the parties, where the wife agreed to receive maintenance. Further, learned counsel would submit that since the respondent-husband is paying maintenance, the petitioner would be in a position to travel from Sringeri to Mysuru. Thus, he prays for dismissal of the petition.

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5. In a petition under Section 24 of CPC for transfer of proceedings, more particularly in matrimonial cases, the Court shall have to take note of hardship and inconvenience that would be caused to the wife along with social and financial status of the parties.

6. The petition averment would state that from the marriage of petitioner and respondent, they have one child. The child is with the petitioner-wife. The petitioner- wife has initiated proceedings in Crl.Misc.No.22/2023 under Section 125 of Cr.P.C., seeking maintenance, which is pending before the Court at Sringeri. The respondent- husband has initiated proceedings for dissolution of marriage at Family Court, Mysuru. As the petitioner is not working and has no income of her own, it would be difficult for her to travel from Sringeri to Mysuru along with her child. Therefore, it would be appropriate to transfer M.C.No.665/2023 on the file of III Additional Principal Family Court, Mysuru to the Principal Judge, Family Court at Sringeri. If the prayer of the petitioner is NC: 2023:KHC:44910 not allowed, the petitioner-wife would suffer more hardship and inconvenience. Therefore, the following:

ORDER

(i) The petition filed under Section 24 of CPC is allowed, directing transfer of M.C.No.665/2023 on the file of III Additional Principal Family Court, Mysuru to the Court of Senior Civil Judge and JMFC., Sringeri, for disposal in accordance with law.

Sd/-

JUDGE SMJ